W013774-103126 - California Public Records Request

Message History (2)

On 10/31/2026 11:38:52 AM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 10/31/2026 and given the reference number **W013774-103126** for tracking purposes.

Record(s) Requested: **Subject: Public Records Act request — ALPR platform access by California National Guard Counterdrug Task Force personnel assigned to the Department**

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department. This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

As you are aware, on October 29, 2026 the City produced, as "responsive to item 3" of request W013606-100826, a Memorandum of Understanding between the California National Guard Counterdrug Task Force (CDTF) and the Department, signed for the Department by Captain Dave Peruzzaro on October 17, 2024, with the CDTF legal review dated November 13, 2024. Item 3 of that request asked for records designating, authorizing or approving an "authorized designee," or any other person who is not a Department employee, "to operate an ALPR system or access ALPR data under the Department's authority." The MOU describes CDTF support to the Department's counterdrug activities, including "Investigative Case Analyst" and "Imagery/Map Support" positions (§ 6.a); it does not mention ALPR, license plate data, Flock Safety or Axon.

Scope. "ALPR platform" and "account" have the meanings given in W013606-100826: Flock Safety; Axon, including Fleet 3 and any Axon application used to search, view or administer ALPR data; and any other ALPR platform on which the Department or persons acting under its authority have held accounts, including Vigilant Solutions and the NCRIC AstroMetrics platform. "CDTF personnel" means any member of the California National Guard or California Military Department assigned to support the Department under the MOU or any earlier arrangement. The period is January 1, 2024 through the date of this request, or from the start of CDTF support to the Department if earlier. Please respond to each item separately.

Several items below ask for records that Department policy, the MOU or state law says shall exist, and each of those items quotes the requirement. For those items, a response of "no responsive records" would mean that the required record does not exist, and may indicate that the Department is not complying with that policy, agreement or law.

1. The Department's written requests for CDTF support: the "validated support request letter" referred to in the November 13, 2024 legal review, and each written request for a mission under the MOU, with the objectives stated for each mission and the Department point of contact designated for it. Requirement: MOU § 4.a provides that CDTF support "will be initiated upon approval of a written request from the San Mateo Police Department" and that the Department "will provide specific objectives for each requested mission and designate a San Mateo Police Department point of contact." A "no responsive records" response to this item would mean the Department has no record of what it asked the CDTF to do.

2. Records showing which CDTF personnel have been assigned to support the Department, the support category or position of each (for example, "Investigative Case Analyst"), the Department unit supported, and the start and end dates of each assignment. Existing records from which this can be read are sufficient, for example assignment orders, rosters, the sign-in records contemplated by MOU § 4.b, or any screening record or agreement to "additional San Mateo Police Department physical and information security requirements" contemplated by MOU § 7.c. If the Department withholds a CDTF member's name, I ask that the position, unit and dates be produced with the name redacted.

3. For each CDTF member in item 2, the account records on each ALPR platform: the user-list entry (in the form of the list produced under W013606 on October 16, 2026, with the creation and deactivation dates that list omits) and the event-log entries recording the account's creation, role or permission changes, and deactivation. A "no responsive records" response to this item would mean one of two things: that no CDTF member has held an account or accessed ALPR data under the Department's authority, in which case the MOU is not a record of the kind item 3 of W013606 asked for and that item remains open; or that CDTF personnel accessed ALPR data without an account record. If it is the first, please say so.

4. For each CDTF member in item 3, (a) the record approving the member's ALPR access and of the determination that the member's job duties necessitate it, and (b) the record showing that the member completed Department-approved ALPR training before access. Requirement: Policy 463.4(a) provides that an ALPR "shall only be used for official law enforcement business by any Department member(s) or authorized designee whose job duties necessitate the use of ALPR and that have completed Department approved training"; Policy 463.4(d) provides that "[n]o member of this department or authorized designee shall operate ALPR equipment or access ALPR data without first completing department-approved training"; Policy 463.2 provides that "ALPR data retention and access, shall be managed by the ALPR Committee Captain or their designee"; and SOP 205.3 provides that "[r]ecords of this training shall be maintained by our Training Division." A "no responsive records" response to this item would mean the Department has no record of who approved a CDTF member's access or on what basis, or no record that the member was trained before using it.

5. The platform audit records of every search, query or data access made through each account in item

3, from the account's creation to the date of this request, in the format the platform exports them (for Flock, the organization audit export; for Axon, the audit trail), with the user, timestamp, reason and case-number fields. Requirement: Policy 463.6(a) provides that ALPR data "shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date and time (Civil Code § 1798.90.52)," and Civil Code § 1798.90.52(a)(3) provides that the access record shall include "[t]he username of the person who accesses the information, and, as applicable, the organization or entity with whom the person is affiliated." For an account that exists, a "no responsive records" response to this item would mean either that the account was never used to access ALPR data, or that the access record state law requires was not kept.

6. Any analytical product, report, map or case-analysis document that CDTF personnel prepared for the Department using ALPR data, and any record of its retention by or dissemination to anyone outside the Department. Requirement: MOU § 9.b provides that "CDTF personnel shall not independently collect, retain, or disseminate information on United States persons. The criminal information under analysis is the property of San Mateo Police Department and will not be retained in NGCA facilities or databases, nor disseminated." If the Department withholds a product under Gov. Code § 7923.600, I ask that it identify the product by date and type, so that its existence is on the record. A "no responsive records" response to this item would mean that no CDTF work product used ALPR data.

7. The CDTF activity and statistics reports contemplated by MOU § 9.d, and the Department's statistics provided to the CDTF under that section. Requirement: MOU § 9.d provides that "[t]he CDTF is required to provide timely reporting of drug interdiction and CD support activities/statistics," that the Department "will provide the CDTF with illicit drug detection, deterrence, disruption, and curtailment statistics (i.e. seizures, arrests, convictions) directly attributed to CDTF support," and that "[l]aw enforcement and case sensitive information will not be included in these reports."

8. The record designating, authorizing or approving ALPR access for the account holders titled "DA Investigator" and "Cold Case Investigator" on the user list produced October 16, 2026, and for the integration accounts "API User (Axon)" and "API User (Sun Ridge)" on that list. If a holder is a Department employee, a record showing that employment is sufficient. A "no responsive records" response to this item would mean that people or systems outside the Department were given access with no record authorizing it.

Where a responsive record contains exempt content, please produce the reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)). The MOU produced on October 29 carries "CUI" markings on every page; if the Department withholds any record on that basis, please identify the federal or state law that exempts or prohibits its disclosure (Gov. Code § 7927.705). If the Department withholds any record under Penal Code § 832.7 or Gov. Code § 7923.600, please identify which records and the basis for each. Records held by Flock Safety or Axon on the Department's behalf are sought to the extent they are Department records (Gov. Code § 7920.530; City of San Jose v. Superior Court (2017) 2 Cal.5th 608). Where a record exists in electronic form, please provide it in its native format.

If any item yields no records, please say so for that item and continue with the rest. If the volume is large, I'm glad to discuss narrowing the scope.

Thank you,

Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.

> On 10/31/2026 11:38:51 AM, Brian C wrote:

Request Created on Public Portal